suing, yet each of the defendants was not capable of being sued, in the circuit court of Mississippi.

But it was contended at the bar, that whatever might have been the *65] original ground of objection to the jurisdiction of the court, the *defendants had appeared by attorney; and that such an appearance waived all objection to the jurisdiction of the court. This is admitted to be a well-established rule, in pleas of this sort, in courts of general jurisdiction, where the plea is interposed by individual defendants. We deem it unnecessary, for the purposes of this case, to inquire, what would be the effect of an appearance by attorney, of an individual defendant, in pleading such a plea in the circuit courts of the United States, which are of limited jurisdiction. But we are clearly of opinion, that in the case of a corporation aggregate, no waiver of an objection to jurisdiction could be produced, by their appearing and pleading by attorney, because, as such a corporation cannot appear but by attorney, to say that such an appearance would amount to a waiver of the objection, would be to say, that the party must from necessity forfeit an acknowledged right, by using the only means which the law affords of asserting that right.

It was further contended, that all objection to the state of the parties in this case was obviated by the act of congress, passed February 28th, 1839, entitled, "an act, in amendment of the acts respecting the judicial system of the United States." The first section of that act provides, "that where in any suit at law or in equity, commenced in any court of the United States, there shall be several defendants, any one or more of whom shall not be inhabitants of, or found within, the district where the suit is brought, or shall not voluntarily appear thereto, it shall be lawful for the court to entertain jurisdiction, and proceed to the trial and adjudication of such suit between the parties who may be properly before it; but the judgment or decree rendered therein shall not conclude or prejudice other parties, not regularly served with process, or not voluntarily appearing to answer."

We consider the true construction of this act to be this: The 11th section of the judiciary act, after having prescribed the jurisdiction of the circuit courts, as it regards the character of the parties, by way of personal exemption, declares, "that no civil suit shall be brought before either of said courts against an inhabitant of the United States, by any original process, in any other district than that whereof he is an inhabitant, or in which he shall be found, at the time of serving the writ." Under the operation of this clause, many difficulties occurred in practice, in cases both in law and equity, in which, by the principles governing courts both of law and equity, it was necessary to join several defendants, some of whom were, and others were not, inhabitants of the district in which the suit was brought. The act of 1839 was intended to remove these difficulties, by providing, that the persons, not being inhabitants, or not found within the district, may either not be joined at all with those who were, or if joined, and they did not waive their personal exemption, by a voluntary appearance, the court may go on to judgment or decree against the parties properly before it, as *66] if the others had not been joined. *But it did not contemplate a change in the jurisdiction of the courts, as regards the character of the parties, as prescribed by the judiciary act, and as expounded by this court; that is, that each of the plaintiffs must be capable of suing, and